

098 DEL 07074686

098-07074686

Shipper's Name and Address WHITE LINE AIRWAYS DEL DELHI IN		Shipper's Account Number		Not negotiable Air Waybill Issued by AIR INDIA VATIKA ONE ON ONE,BLK 4, SEC-16,GURGAON-122007,HR Copies 1,2 and 3 of this Air Waybill are originals and have the same validity			
Consignee's Name and Address KK ENTERPISE CCU KOLKATA IN		Consignee's Account Number		It is agreed that the goods described herein are accepted in apparent good order and condition (except as noted) for carriage SUBJECT TO THE CONDITIONS OF CONTRACT ON THE REVERSE HEREOF.ALL GOODS MAY BE CARRIED BY ANY OTHER MEANS INCLUDING ROAD OR ANY OTHER CARRIER UNLESS SPECIFIC CONTRARY INSTRUCTIONS ARE GIVEN HEREON BY THE SHIPPER AND SHIPPER AGREES THAT THE SHIPMENT MAY BE CARRIED VIA INTERMEDIATE STOPPING PLACES WHICH THE CARRIER DEEMS APPROPRIATE . THE SHIPPER'S ATTENTION IS DRAWN TO THE NOTICE CONCERNING CARRIER'S LIMITATION OF LIABILITY.Shipper may increase such limitation of liability by declaring a higher value for carriage and paying a supplemental charge if required.			
Issuing Carrier's Agent Name and City WHITE LINE AIRWAYS MUMBAI		Accounting Information					
Agents IATA Code 0000000		Account No. 1023641					
Airport of Departure (Addr. of First Carrier) and Requested Routing DELHI AIRPORT				Reference Number		Optional Shipping information	
To CCU	By First Carrier AI	Routing and Destination	to	by	to	by	
Airport of Destination KOLKATA AIRPORT				Requested Flight/Date /		Insurance XXX	
Handling Information				Declared Value for Carriage NVD Declared Value for Customs NCV			
				INSURANCE - If carrier offers insurance and such insurance is requested in accordance with conditions on reverse hereof indicate amount to be insured in figures in box marked "Amount of Insurance".			
				SCI			
No.of Pieces RCP	Gross Weight	K lb	Rate Class Commodity Item No.	Chargeable Weight	Rate Charge	Total	Nature and Quantity of Goods (incl. Dimensions or Volume)
1	1.00	K	M	1.0	1,500.00	1,500.00	CONSOL AND MEDICINE (NON DG) DIMS(CMT)1.0x1.0x1.0/1
1	1.00					1500.00	
Prepaid 1500.00		Weight Charge Collect		Other Charges SSC5.0 DDC500.0 NBC151.0 FLC235.0 LCC200.0 XBC25.0 XCC25.0 DOC125.0 CMC3.0			
Valuation Charge							
Tax 466.02							
Total other Charges Due Agent				Shipper certifies that the particulars on the face hereof are correct and that insofar as any part of the consignment contains dangerous goods such part is properly described by name and is in proper condition for carriage by air according to the applicable Dangerous Goods Regulations.			
Total other Charges Due Carrier 1269.00				WHITE LINE AIRWAYS			
				Signature of Shipper or his Agent			
Total Prepaid 3235.00		Total Collect					
Currency Conversion Rates		cc charges in Dest. Currency					
				Executed on (Date) at (Place) Signature of Issuing Carrier or its Agent			
For Carrier Use only at Destination		Charges at Destination		Total Collect Charges		098-07074686	

Conditions of Contract (Domestic)

Non-International Carriage of Cargo (other than baggage and mail) Regulations, 1980

Air India Limited (AIL) hereby makes the following conditions of contract relating to Non-International Carriage of Cargo (other than baggage and mail) performed by AIL:

1. Short Titles:

- a. These regulations may be called AIL Non-International Carriage of Cargo (other than Baggage and Mail) conditions of carriage.
- b. These shall come into force from 28th July 1998.

2. Definitions:

In these regulations, unless there is anything repugnant in the subject of context:

"Government" means the Government of India

"Company" means Air India Limited

"Non-International Carriage" means carriage other than international carriage as defined in the Carriage by Air Act, 1972

"Cargo" in this context will not include baggage and mail

"Air Waybill" means Air Consignment Note

"Shipper" means Consignor

"Carriage" means Transportation

"Carrier" means the carrier (that is Air India Limited), issuing the Air Waybill, and;

For the purposes of exemption from and limitation of liability provisions set forth or referred to in the Air Waybill, "Carrier" includes agents, servants or representatives of the Carrier.

3./a. "The carriage hereunder is subject to the rules relating to liability established by the Carriage by Air Act (No. 69 of 1972), as extended to non-international carriage with certain exceptions, adaptations, and modifications vide Government of India, Ministry of Tourism and Civil Aviation Notification No. AV-11012/5/79-A dated 5th July 1980 and published in Part-II, section 3, Sub-Section (II) of the Gazette of India dated 19-7-1980 and modified by Government of India, Ministry of Tourism and Civil Aviation, Notification No. AV-11012/5/79-A dated 22-8-1989, No. AV-11012/5/79-A dated 26-3-1992 and further modified by Notification No. AV-11012/1/97-A, dated 20-1-1998 as published in Part-II Section 3, Sub-Section (II) of the Gazette of India dated 31-1-1998."

b. Carriage hereunder is subject to:

i) Applicable laws, government regulations, orders and requirements;

ii) Provision herein set forth;

iii) Applicable tariffs, rules, regulations and timetables (but not the times of departure and arrival therein) of the Company which are made a part hereof and which may be inspected at any of its offices and at airports from which it operates regular services.

c. The agreed stopping places (which may be altered by the Company in case of necessity) are those places, except the place of departure and the place of destination, set forth on the face of the Air Waybill or shown in the Company's time tables as scheduled stopping places for the route.

d. The Shipper acknowledges that he has been given an opportunity to make a special declaration of the value of the goods at delivery and that the sum entered on the face of the "Air Waybill" as "Shippers/consignors declared value of carriage" if in excess of Rs. 450/- (Rupees Four Hundred Fifty) per kilogram constitutes such special declaration of value and has paid a supplementary the sum if the case so requires. In that case, the Company will be liable to pay the sum not exceeding the declared the sum unless he proves that the sum is greater than the actual value to the consignor at delivery.

4. In so far as any provisions contained or referred to in the Air Waybill may be contrary to the mandatory law, government regulations, orders or requirements, such provisions shall remain applicable to the extent that they are not overridden thereby. The invalidity of any provision shall not effect any other part thereof.

5. Except as the provisions of the Second Schedule to the Indian Carriage by Air Act (No. 69 of 1972) as applicable to carriage by air not being international carriage with exceptions, adaptations and modifications thereof or other applicable law may otherwise require:

a. The Company is not liable to the Shipper or any other person for any damage, delay or loss of whatsoever nature (hereafter collectively referred to as "damage") arising out of or in connection with the carriage of the goods unless such damage excluding delay is proved to have been caused by the negligence or willful fault of the Company and there has been no contributory negligence of the Shipper, Consignee or other claimant. The Company will not be liable for damage caused by delay in the carriage.

b. The Company is not liable for any damage directly or indirectly arising out of compliance with laws, government regulations, orders or requirements or from any cause beyond the Company's control

c. The charges of carriage having been based upon the value declared by Shipper, liability shall in no event exceed the Shipper's declared value for carriage stated on the face of the Air Waybill, and in the absence of such declaration by Shipper, the liability of the Company shall not exceed Rs. 450/- (Rupees Four Hundred Fifty Only) per kilogram of goods destroyed, lost or damaged; all claims shall be subject to proof of value.

6. There shall not be any time limit fixed for the completion of the carriage hereunder and the Company may without notice, substitute alternate carriers or aircraft. The Company does not assume any obligation to carry the goods by any specified aircraft or over any particular route or routes or to make connections to any point according to any particular schedule, and the Company is authorized to select or deviate from the route or routes of shipment, notwithstanding that the same may be stated on the face of the Air Waybill. The Shipper shall guarantee the payment of all charges and advances.

7. The goods or packages said to contain the goods described on the face of the Air Waybill shall be accepted for carriage from their receipt at the Company's terminal or airport office at the place of departure to the airport at the place of destination. If so specifically agreed, the goods or packages said to contain goods described on the face of the Air Waybill, will also be accepted for forwarding to the airport of departure and for reforwarding beyond the airport of destination. If such forwarding or reforwarding is by carriage operated by the Company, such carriage shall be upon the same terms as to liability as set forth in Regulations (3) and (5) above. In any other event, the issuing Carrier and last Carrier, respectively, in forwarding or reforwarding the goods, shall do so only as agents of the Shipper, owner or consignee, as the case may be, and shall not be liable for any damage arising out of such additional carriage unless proved to have been caused by its own negligence or willful fault. The Shipper, owner and consignee will authorize Carriers to do all things deemed advisable to effect such forwarding or reforwarding, including but without limitation, selection of the means of forwarding or reforwarding and the routes thereof (unless these have been specified by the shipper), executing and acceptance of documents of carriage (which may include provisions exempting or limiting liability) and consigning of goods with no declaration of value, notwithstanding any declaration of value in the Air Waybill.

8. The Company is authorized (but shall be under no obligation) to pay any duties, taxes or charges and to make any disbursement with respect to the goods, and the shipper, owner and consignee shall be jointly and severally liable for the reimbursement thereof. If it is necessary to make customs entry of the goods at any place, the goods shall be deemed to be consigned at such place to the persons named on the face of the Air Waybill as customs consignee or, if no such person is named, to the Carrier carrying the goods to such place or to such customs consignee, if any such carrier may be designated.

9. Except as otherwise specifically provided in the Air Waybill, delivery of goods will be made to the consignee's named on the face of the Air Waybill or the consignee's agent authorized in writing by a letter of authority accompanied by the consignee's copy of the Air Waybill. Notice of arrival of the goods will, in the absence of other instructions, be sent to the consignee by ordinary methods. The Company will not be liable for the non-receipt or delay in receipt of such notice. In case urgency is placed, the Company may deliver the consignment to the consignee or consignee's authorized agent without production of the consignee's copy of the Air Waybill upon a bond being furnished. The value for the purpose of the Bond will be calculated at the rate of Rs. 450/- (Rupees four hundred fifty) per kilogram of the weight of the consignment, where no value is declared. Where the value is declared for the carriage of goods, the value for purposes of the Bond would be the value of the goods so declared. The delivery of the consignment in the aforementioned manner shall be a complete discharge of any responsibility or liability of the Company.

10./ a. Receipt without complaint of any consignment at the time of delivery shall be prima facie evidence that the consignment has been delivered correctly and in good condition:

b. No action shall be maintained in the case of damage to goods unless a written notice sufficiently describing the goods concerned, the approximate date of the damage and the details of the claims is presented to an office of the Company within 7 days from the date of receipt thereof, and in the case of loss (including non-delivery) unless presented within 120 days from the date of issue of the Air Waybill.

c. Any rights to damages against the Company shall be extinguished unless an action is brought within two years after the occurrence of the events giving rise to the claim as specified in the Carriage by Air Act 1972.

11. The Shipper shall comply with all applicable laws, and other government regulations including those relating to the packing, carriage or delivery of the goods, and shall furnish such information and attach such documents to the Air Waybill as may be necessary to comply with such laws and regulations. The Company is not liable to the Shipper or any other person for loss or expense due to the Shipper's failure to comply with this provision.

12. No agent, servant or representative of the Company has authority to alter, modify or waive any provision of the Air Waybill.

13. The Carrier shall always be entitled to open up the consignment to ensure the correctness of its contents, subject always to it being clearly understood that by doing so the Carrier shall not undertake any responsibility or liability for any contravention of Rule 8 of Aircraft Rules 1937 by the consignor for which the consignor alone shall continue to be liable.

Notice of carriage of prohibited/restricted articles on board Aircraft

Carriage of arms explosives or dangerous goods which are prohibited under sub-rule (1) of Rule 8 and such classes of goods the carriage of which is permitted subject to provisions of sub-rule (3) and (4) of the Aircraft Rule 1937, shall not be carried or cause or permitted to be carried in any Aircraft and contravention of this condition shall entail penal consequence under section 10 of the Aircraft Act 1934. For all purposes, the liabilities shall always be determined according to the real nature of goods carried/sent irrespective of any declarations regarding the nature of goods. A list of prohibited/restricted articles is available at all our Cargo Booking Offices in case of any doubt as to whether the carriage of any goods is prohibited and are permitted subject to any conditions, necessary information may be obtained at all our Cargo Booking Offices